

RESIDENTIAL TENANCY AGREEMENT (MONTH-TO-MONTH)

Property and Rent Consult — Ghana Edition

Grounded in the Rent Act, 1963 (Act 220) and L.I. 369

PARTIES

TENANCY AGREEMENT made this _____ day of _____, _____

LANDLORD

Full Name: _____

Ghana Card / Passport No.: _____

Contact Address: _____

Phone: _____

Email: _____

(hereinafter referred to as "the Landlord")

TENANT

Full Name: _____

Ghana Card / Passport No.: _____

Employer / Business: _____

Contact Address: _____

Phone: _____

Email: _____

(hereinafter referred to as "the Tenant")

PREMISES

Property Address: _____

Unit / Apt No.: _____

Nearest Landmark: _____

Ghana Post GPS: _____

Property Type:

☐ Apartment

☐ House

☐ Flat

☐ Other: _____

RECITALS

WHEREAS the Landlord is the owner or authorised agent of the Premises and is desirous of letting the same to the Tenant on the terms herein;

AND WHEREAS the Tenant is desirous of taking the Premises on those terms;

NOW THEREFORE the parties agree as follows:

CLAUSE 1 — TERM

1.1 The Landlord lets and the Tenant takes the Premises on a month-to-month basis commencing on _____, continuing on a rolling monthly basis until terminated in accordance with this Agreement.

1.2 There is no fixed end date. The tenancy continues each month until a valid written termination notice is served.

1.3 Either party may terminate by giving not less than ONE (1) full calendar month's written notice, expiring at the end of a rental month.

1.4 The Landlord may terminate on the grounds set out in Clause 9.2 by giving the appropriate notice under Act 220.

CLAUSE 2 — RENT

2.1 The Tenant shall pay rent at GHS _____ per month, payable in advance as set out in Clause 3.

2.2 Rent shall be paid without deduction, set-off, or counterclaim except as permitted by Act 220.

2.3 Rent may be reviewed by the Landlord on a [monthly/quarterly/annual] basis. Any proposed increase requires not less than three (3) months' written notice, as required by L.I. 369.

2.4 Should a permitted increase arise, the Landlord shall give not less than three (3) months' written notice before the increase takes effect.

2.5 In the event of a rent review, both parties may negotiate the revised amount. If agreement cannot be reached, either party may refer the matter to the Rent Control Department.

CLAUSE 3 — ADVANCE PAYMENT

3.1 The Tenant shall pay _____ [1/2/3] months' rent in advance on signing, totalling GHS _____. Advance periods exceeding three (3) months require express written agreement in this clause.

3.2 The Landlord shall issue a written receipt upon receiving the advance, as required by section 25 of Act 220.

3.3 The advance rent shall be applied against successive monthly rent obligations as they fall due.

3.4 Where the advance period expires, further advance rent is payable on written terms agreed between the parties.

CLAUSE 4 — SECURITY DEPOSIT

4.1 The Tenant shall pay a security deposit of GHS _____ on signing, held as security against: (a) unpaid rent; (b) damage beyond fair wear and tear; (c) any other breach.

4.2 The deposit shall not be applied as rent.

4.3 Within fourteen (14) days of vacation, the Landlord shall return the deposit or provide a written itemised statement of deductions and return the balance.

4.4 Deposit disputes may be referred to the Rent Control Department.

CLAUSE 5 — UTILITIES AND SERVICE CHARGES

5.1 The following are the Tenant's direct responsibility:

☐ Electricity (ECG/NEDCo)

☐ Water

☐ Internet/Cable

☐ Refuse Collection

5.2 The Landlord's inclusions: _____

5.3 Service charges: GHS _____ per month for: _____

5.4 The Tenant shall not tamper with any utility meter or connection.

CLAUSE 6 — LANDLORD OBLIGATIONS

6.1 The Landlord shall: (a) keep the Premises in reasonable repair at commencement; (b) ensure structural soundness and fitness for habitation; (c) carry out structural repairs within reasonable time of written notification; (d) not interfere with the Tenant's quiet enjoyment; (e) give at least 24 hours' written notice before entering except in emergency; (f) issue a written receipt for every payment.

CLAUSE 7 — TENANT OBLIGATIONS

7.1 The Tenant shall: (a) pay rent on time; (b) keep the Premises clean and in good condition; (c) not carry out structural alterations without prior written consent; (d) not sublet without prior written consent; (e) not use the Premises for unlawful purposes; (f) permit entry with 24 hours' notice; (g) report defects promptly in writing; (h) not keep pets without consent; (i) comply with all applicable laws; (j) return all keys on vacation.

CLAUSE 8 — CONDITION ON VACATION

8.1 The Tenant shall return the Premises in the same condition as at commencement, subject to fair wear and tear.

8.2 A joint inspection shall be conducted within 48 hours of vacation. Defects recorded in writing and signed by both parties.

8.3 All keys, access cards, and remote controls shall be returned on the day of vacation.

CLAUSE 9 — TERMINATION AND NOTICES

9.1 Either party may terminate at the end of the fixed term by giving _____ [30/60] days' written notice.

9.2 The Landlord may terminate before term expiry on grounds permitted by Act 220, including: (a) non-payment of rent exceeding one month; (b) material breach unremedied after 14 days' written notice; (c) illegal use; (d) serious damage.

9.3 All notices shall be in writing and delivered personally, by registered post, or by email.

9.4 The Tenant shall not be removed except by lawful order of a competent court or Rent Tribunal.

CLAUSE 10 — DISPUTE RESOLUTION

10.1 Disputes not resolved directly shall be referred first to the Rent Control Department of the relevant district.

10.2 Unresolved matters may then be referred to the District Magistrate Court having jurisdiction.

10.3 Nothing herein prevents either party seeking urgent injunctive relief from a court of competent jurisdiction.

CLAUSE 11 — GENERAL

11.1 This Agreement is the entire agreement between the parties and supersedes all prior negotiations.

11.2 Any variation shall be in writing and signed by both parties.

11.3 If any provision is unenforceable, the remaining provisions continue in full force.

11.4 This Agreement is governed by the laws of the Republic of Ghana.

EXECUTION

SIGNED by the LANDLORD:

Full Name: _____

Signature: _____

Date: _____

Witness Name: _____

Witness Signature: _____

SIGNED by the TENANT:

Full Name: _____

Signature: _____

Date: _____

Witness Name: _____

Witness Signature: _____

SCHEDULE 1 — FIXTURES AND FITTINGS INVENTORY

(Attach completed move-in inspection checklist)

Item	Condition at Commencement	Condition at Vacation	Notes

SCHEDULE 2 — SPECIAL CONDITIONS

1. _____
2. _____
3. _____